22. At no point in the 2010 Action did the applicants amend the style of cause to name 323 NSL, 325 NSL, John Boudreau, or Arichat Metal as parties. The applicants did not subpoena nor otherwise seek disclosure from any of these entities or individuals. The applicants did not recall Mr. Boucher for discovery or otherwise require him to disclose evidence pertaining to what if any disposition 176 NSL made of the proceeds of sale of its assets, or to whom.

23. In support of the 2010 Action, the applicants had filed the affidavit of Jeffrey Waugh, then-articled clerk for Stewart McKelvey, which affidavit was sworn on April 13, 2018. The Waugh Affidavit and some of its exhibits were incorporated into the present proceeding by virtue of the affidavit of Lindsay Corey, sworn on April 1, 2021; the entire Waugh Affidavit was incorporated into this proceeding *via* the Johnson Affidavit, sworn April 13, 2021.

## ISSUES

24. Should the court dismiss the application summarily on the grounds that the applicants' claim is barred by the *Limitation of Actions Act*?

## LAW & ARGUMENT

25. Summary judgment on the evidence is governed by Rule 13 of the *Civil Procedure Rules*. In particular, R. 13.04 says, as follows:

> **13.04** (1) A judge who is satisfied on both of the following must grant summary judgment on a claim or a defence in an action:
>
> (a) there is no genuine issue of material fact, whether on its own or mixed with a question of law, for trial of the claim or defence;
>
> (b) the claim or defence does not require determination of a question of law, whether on its own or mixed with a question of fact, or the claim or defence requires determination only of a question of law and the judge exercises the discretion provided in this Rule 13.04 to determine the question.